



Bureau of Experts at the Council of Ministers
Official Translation Department

Nuisance Law

Royal Decree No. M/14
June 19, 2002

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

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Nuisance Law

Article 1

A business involving dangerous activities or activities which cause disturbance or pose harm to health or environment may not be established or operated unless licensed by the relevant agencies. Establishment of a business shall include expansion, addition of a new activity to the existing business, changing the modus operandi wholly or partially, or relocation. The implementing regulations shall determine activities subject to this Law, locations and conditions for engaging in such activities, and oversight agencies.

Article 2

The licensee must submit his license renewal application to the relevant agency at least 30 days prior to the date of expiration. The relevant agency may, based on a reasoned decision, reject the renewal application if the licensing conditions are not satisfied or if the circumstances upon which the original license was issued have changed. The implementing regulations shall determine the license term and the conditions for its issuance, renewal, and revocation as well as the grace period for status rectification.

Article 3

A license may not be assigned to any person unless license conditions are satisfied and the approval of the issuing agency is obtained.

Article 4

The licensee shall personally manage the business or appoint a manager or operations officer in accordance with conditions set forth in the implementing regulations. If the licensee replaces the appointed manager or operations officer, he must notify the relevant agency of such replacement within 30 days.

Article 5

Employees assigned by relevant agencies shall access businesses subject to this Law during business hours to verify compliance with required conditions and to detect, record, and investigate violations. Business owners shall enable said employees to carry out their duties upon presentation of their credentials. The implementing regulations shall determine the business hours of each activity and the procedures for detecting, recording, and investigating violations using designated forms.



Article 6

1. Without prejudice to penalties provided for in other laws, any person who violates the provisions of this Law shall be subject to a fine not exceeding 30 thousand riyals in addition to closure of his business pending rectification of the violation. If the violation is repeated, the contents of the violator's business shall be confiscated pursuant to a court ruling, in addition to a fine and business closure.
2. A person who violates the provisions of the implementing regulations shall be subject to a fine not exceeding five thousand riyals. The implementing regulations shall determine the provisions the violation of which warrants the imposition of this penalty.
3. In all cases, the violator shall rectify the violation at his own expense or pay damages.

Article 7

1. The Minister of Interior, in his capacity as the Head of the Civil Defense Council, or his designee, may form a committee, or more, to review violations and impose the penalties provided for in Article 6 of this Law. A committee shall consist of at least three members, one of whom shall be from the relevant agency and another shall be an expert in Sharia or law.
2. A penalty may not be imposed unless approved by the Minister of Interior or his designee.
3. A violator must be notified of the penalty decision; the decision shall state the violator's right to appeal before the Board of Grievances in accordance with its Law.
4. Pursuant to a decision by the Minister of Interior, the committee reviewing violations shall refer the case file to the Bureau of Investigation and Public Prosecution if the violation constitutes a gross violation or results in serious harm.

Article 8

The Minister of Interior, in his capacity as the Head of the Civil Defense Council, shall issue the implementing regulations of this Law upon a recommendation by a committee comprising representatives from the Ministry of Interior (the General Directorate of Civil Defense), Ministry of Municipal and Rural Affairs and Housing, Ministry of Health, Ministry of Industry and Electricity, Ministry of Commerce, and Presidency of Meteorology and Environment Protection.

Article 9

Relevant agencies shall collect license fees and fines in accordance with applicable laws.

Article 10

- A. This Law shall supersede the Law of Nuisances issued by Royal Decree No. (M/17) of 18/03/1382H.
- B. This Law shall enter into force 18 months following the date of its publication in the Official Gazette. The implementing regulations of this Law shall be issued within one year from the date of this Law's publication and shall enter into force on the date this Law enters into force.



Appendix

Amendments

June 23, 2020 (Thul-Qi'dah 2, 1441H)

Council of Ministers Resolution No. 693 provides for the following:

- Adding the Ministry of Industry and Mineral Resources to the agencies mentioned in Article 8.